

*Should Governments Have the Right to Conduct Offensive Cyber Operations Against
Hackers? Discuss*

Cyberspace has become an important security issue. Evidence have been raised on ransomware attacks and state-sponsored hacking. U.S. statistics reveal that ransomware has affected 870 critical-infrastructure organisations, which have disrupted hospitals, schools and utilities (Government Accountability Office [GAO], 2024). Since defensive measures are not enough to prevent these harms, this essay will argue that governments ought to be limited in their right to execute offensive cyber actions against hackers with stringent control and legal laws.

First, offensive campaigns may help defend citizens, by interfering with the criminal infrastructure. By disabling command-and-control servers or payment paths, hackers are deprived of their ability and their profit. According to the 2024 analysis of GAO, ransomware has impacted vital services and has caused significant recovery expenses to public agencies (GAO, 2024). Due to the fact that most of the gangs are under jurisdictions that do not respect extradition requests, the only solution that might help in countering the constant threats is targeted operations.

Second, offensive cyber operations may be applied on international norms. New literature suggests that cyber force must be driven by the principles of necessity, proportionality and discrimination, and minimisation of harm to civilian population and non-combat infrastructure (Tsojniashvili, 2024). When states operate within specific laws, document decisions and liaise with allies, offensive operations can supplement policymaking and diplomacy and indicate that cyberattacks have stimulated other actors.

However, critics worry that it encourages state hacking, encouragement of escalation, misattribution and violations of sovereignty. Though such risks are real and offensive tools can penetrate into the civilian networks or be reused by the offenders, these risks do warrant increased protection, but not a total ban. Independent oversight bodies should only authorize offensive

operations which must undergo review to ensure that the legal limits and human-rights standards are upheld.

Finally, the governments must have the conditional right to engage in offensive cyber operations against hackers. Since cybercrime is transnational, defensive measures are not sufficient. However such right should be limited, clear and seriously monitored. Incorporating defensive features into the law and high accountability may assist states in securing the essential infrastructure without jeopardizing the stability and confidence of a secure cyber landscape.

(358 words)

References

Government Accountability Office. (2024). *Ransomware impacts on infrastructure*.

<https://www.gao.gov/assets/gao-24-106221.pdf?>

Tsotniashvili, Z. (2024). Legal and ethical standards in cyber conflict. *Journal of Digital Security*.